

Calendar Line 6

Case Name: *Claudia Barrera Roque et al. v. Stucco Supply Co. et al.*

Case No.: 21CV381806

Plaintiff Claudia Barrera Roque moves to compel further deposition testimony from defendant Gabriel Calderon; in addition, she seeks \$1,560 in monetary sanctions for having had to bring this motion. The court GRANTS the motion and GRANTS IN PART the request for sanctions.

The court has reviewed the entire transcript of Calderon's deposition, lodged with this motion, and makes the following findings:

- Defendants' counsel improperly instructed Calderon not to answer questions on multiple occasions. The most common rationales offered were that the answer was "not likely to lead to the discovery of admissible evidence" or that the image/video that was the subject of the question "speaks for itself." Neither of these is a valid basis for instructing a witness not to answer a question.
 - Indeed, the notion that a document (or image or video) "speaks for itself" is not a proper deposition objection *under any circumstance*. At best, the oft-misused objection that a document "speaks for itself" is a misapplication of the best evidence rule, which calls for the use of an original document rather than a facsimile. In other words, this is *at best* an evidentiary objection at trial, not a discovery objection.
- Defendants' counsel repeatedly made speaking objections at the deposition that appeared to be designed to coach or steer (and did have the effect of coaching and steering) the witness's answers. This was grossly improper.
- The court disagrees with Calderon's allegation that the questioning at the deposition constituted "harassment." To be sure, some of the questioning was persistent and repetitive, but the repetition was largely attributable to the witness's evasive answers and counsel's improper coaching and instructions.
- Barrera Roque adequately met and conferred before bringing this motion.

The court grants the motion to compel and orders that Calderon be deposed for up to one more hour on the record, within 30 days of notice of entry of this order. The court also grants, in part, Barrera Roque's request for monetary sanctions. Barrera Roque has requested \$1,560, but that amount includes one hour for appearing at the hearing on this motion, which the court finds to be unnecessary. Instead, the court orders sanctions in the amount of **\$1,260** (four hours at \$300/hour plus the \$60 filing fee). Calderon and his counsel are jointly and severally liable for this amount, which shall be paid within 30 days of notice of entry of this order. The purpose of discovery sanctions is compensatory, not punitive.

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Calendar Line 7**Case Name:** *Joyce Diaz v. General Motors, LLC***Case No.:** 22CV393755

It is extremely difficult to tell from the parties' lengthy briefs filled with generic and boilerplate arguments exactly what the subject of this motion is. Plaintiff Joyce Diaz seeks to compel the deposition of defendant General Motors, LLC's ("GM's") person most knowledgeable ("PMK") as to deposition topics Nos. 1-11, 15-16, 27-28, 31, and 33-36. (Notice of Motion, p. 1:7-8.) Nowhere in Diaz's opening brief does she actually identify the language of any of these topics. GM's opposition states that GM has already agreed to produce a PMK witness for topics Nos. 1-26 and 31-37. Therefore, it appears that the only remaining dispute is as to topics Nos. 27 and 28. Based on the court's review of the exhibits, it appears that these topics focus on GM's efforts to "preserve relevant and discoverable information in this matter" and its efforts "to search for documents and information responsive to Plaintiff's discovery requests." The court finds that these are inappropriate topics for a PMK deposition of an entity, with little or no probative value for the causes of action in this case. The court therefore DENIES the motion as to the deposition topics.

Diaz also seeks to compel further responses to 21 requests for production of documents (Nos. 1, 2, 3, 7, 8, 13, 20, 24, 25, 27, 33, 41, 85, 91, 108, 110, 111, 125, 126, 127, and 128), but once again, her generic briefs fail to address the specific language of any single one of these requests, much less all of them. Her separate statement contains generic arguments that appear to have been cut and pasted from other separate statements in other cases. The court has reviewed the language of the document requests and observes the following:

- First, it appears that Requests Nos. 1, 2, 3, 7, 8, and 13 focus on documents relating to the "Subject Vehicle"—i.e., Diaz's 2018 GMC Acadia vehicle. GM's responses state that it will produce *at least some* of the requested documents, to the extent that they exist, and it identifies what those documents are. For example, the response to Request No. 7 states:

GM will comply in part and produce a list of technical service bulletins ("TSBs") issued for vehicles of the same year, make, and model as the SUBJECT VEHICLE. After it has produced a list of TSBs GM will – at Plaintiff's request – search for and produce, if located, copies of a reasonable number of TSBs if any, that Plaintiff has identified as specifically regarding the defects alleged in Plaintiff's complaint. GM will also produce copies of the bulletins for every field action, including any recalls, it issued for the SUBJECT VEHICLE as identified in the Global Warranty History Report.

Diaz's separate statement fails to identify the deficiency in this response and similar responses, as it fails to identify what documents it believes are still being withheld by GM and that still need to be produced in response to Requests Nos. 1, 2, 3, 7, 8, and 13. Absent such an identification, there is no basis to compel a further response to these requests.

- Second, Requests Nos. 20, 24, 25, 27, 33, 41, 85, 91, 108, 110, 111, 125, 126, 127, and 128 call for more general, company-wide documents that are not focused on the